



File No.: EXP202308488

RESOLUTION OF RIGHTS PROCEDURE

Once the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD) have been carried out, the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Erasure and Limitation against the MINISTRY OF TRANSPORTS, MOBILITY AND URBAN AGENDA (hereinafter, the respondent) without receiving the legally established response to their request.

The claimant states that they participated in a selection process convened by the respondent.

On April 18, 2023, they exercised the right to erasure of their data before the respondent, indicating in their writing the 6 links that allowed access to their data.

On May 10, 2023, the respondent replied that all documents regarding which the interested party raises the right to erasure derive from administrative acts that are part of selection processes, and therefore, they cannot comply with the erasure request in accordance with the provisions of Article 17.3 of the GDPR. Regarding the proper publication of the data, they transcribe Report 0178/2014 from the Data Protection Agency, which concludes that the publicity and transparency of the competitive process must prevail over the right to data protection. They also highlight that the data of the candidates have been published in accordance with the provisions of the seventh additional provision of the LOPDGDD. Furthermore, they inform that although it could technically proceed to erase the data from the department's website, it cannot be done from the Official State Bulletin.

The claimant disagrees with the response issued, stating that: -the links refer to completed selection processes and therefore it is not necessary to have that information on the website; that although the data continues to appear in the BOE, it must be removed from the respondent's website; that in some of the links their ID appears without being partially anonymized; that the right to publish their data does not prevent their data from being erased. They also request that in future selection processes, the lists not be public for everyone.

On June 5, 2023, the claimant sent an email to the respondent requesting the limitation of the processing of the personal data of the candidates, so that they can only be consulted by the individuals participating in the procedure and that they are not indexed by internet search engines.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on August 10, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present the allegations they deemed appropriate.

The respondent states that they have removed the URLs referred to by the claimant in their request since the selection process that led to the publication has concluded.

Additionally, they add:

"...the department's website will progressively remove all acts constituting a selection process for civil servants two months after the publication of the resolution of appointment of career civil servants.

Regarding the publications in the Official State Bulletin, although they will not appear on the department's page two months after the conclusion of the selection process, it is noted that they will continue to be listed in the aforementioned bulletin and its website.

Additionally, referring to the request made by the interested party that "the lists not be public for everyone," it is indicated that it is considered that in application of Article 45 of Law 39/2015 and with

the purpose of guaranteeing the transparency of selection processes, the publication of the acts that comprise a selection process must be carried out, as it is currently done, that is: through the department's website.

This has been considered in coherence with what the AEPD itself stated in its report 0358/2015: "we consider that to comply with the principle of publicity, the interested party must be identified, as well as the circumstance of being admitted or not to the call; if applicable, the reason for exclusion; as well as providing the data of the evaluation of merits."

Furthermore, as stated in the aforementioned report, it is considered that the acts comprising the selection procedure must be published while the selection is ongoing, in accordance with the weighting that the National Court has made in the ruling of April 26, 2012, of the First Section of the Administrative Litigation Chamber regarding the principle of publicity and protection of personal data, "concluding that during the processing of the selection process, the former must prevail..."

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FOURTH: After examining the document submitted by the responding party, it is forwarded to the claiming party, so that, within a period of ten working days, they may formulate the allegations they deem appropriate.

The claiming party, during the allegations period, presents an extension of the URLs they wish to have removed.

They add:

"...That is to say, in my request I am asking for the deletion of ALL existing ones, not just those 6 links (that I found). In the allegations from MITMA, they state that they have deleted all the data. However, upon checking, I reach a different conclusion. And upon realizing this, I sent a new document (which I attach to these Allegations as Annex 1) on September 28 to MITMA so that they can correct it before these allegations are taken into account. In that document, I explain that there are 2 (of the previous 6 links) that when typed into the Google search engine, are still present (they are not deleted) – (I do not know the technical reason, and I expressly request that they investigate it and carry out the de-indexing from all search engines (...)) That is to say, in my request I am asking for the deletion of ALL existing ones, not just those 6 links (that I found)..."

The claiming party speaks of the need to preserve their privacy, stating that their workplace does not need to know whether they are applying for competitive exams or not. Additionally, they express their disagreement with the organizing party regarding the dissemination of data in public calls.

FIFTH: Following the statements made by the claiming party, the responding party is again notified, and they respond and provide evidence that they have attended to the request and are removing the URLs as the selection processes are completed.

The responding party provides extensive documentation to prove that they are actively working to remove the requested URLs.

Namely:

"... This organization has been responding to the requests of A.A.A., proceeding to remove the documents located on the department's website that contain information about the interested party and whose publication is not strictly necessary.

This removal has been carried out in such a way that the documentation cannot be accessed directly from the website <https://www.mitma.gob.es/>, nor through queries in search engines that provide links to said website..."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee

of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions...

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and to demonstrate that the necessary response had been provided to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant had been satisfied. Consequently, on August 10, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission to processing was notified to the complainant. After that period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;

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c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and no other legitimate grounds for the processing prevail, or the data subject objects to the processing pursuant to Article 21, paragraph 2;

d) the personal data have been processed unlawfully;

e) the personal data must be erased to comply with a legal obligation under Union or Member State law applicable to the data controller;

f) the personal data have been obtained in relation to the offering of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable measures, including technical measures, to inform controllers who are processing the personal data of the data subject's request for erasure of any link to those personal data, or any copy or replication of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

a) for exercising the right to freedom of expression and information;

b) for compliance with a legal obligation requiring processing of personal data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 is

likely to render impossible or seriously impede the achievement of the objectives of that processing, or e) for the establishment, exercise, or defense of legal claims."

V

Right to Restrict Processing

Article 18 of the GDPR, which regulates the right to restrict the processing of personal data, states the following:

"1. The data subject shall have the right to obtain from the controller restriction of processing of personal data when one of the following applies:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the erasure of the personal data and requests instead the restriction of their use;
- c) the controller no longer needs the personal data for the purposes of the processing, but the data subject needs them for the establishment, exercise, or defense of legal claims;

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d) the data subject has objected to the processing under Article 21, paragraph 1, while it is verified whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for its storage, with the consent of the data subject or for the formulation, exercise, or defense of claims, or for the protection of the rights of another natural or legal person, or for important public interest reasons of the Union or of a specific Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the lifting of such restriction.

It should be noted that the right to restrict processing enables the claimant to limit the processing of data when the accuracy of the personal data is contested, for a period that allows the controller to verify its accuracy; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims, or when the data subject has objected to the processing, while it is verified whether the legitimate grounds of the controller override those of the claimant.

Therefore, the right to restrict processing provided for in Article 18 of the GDPR does not aim to limit the processing of the data of the objectors in the manner intended by the claimant.

That said, it should be noted in relation to the principle of publicity and transparency of selection processes that this principle does not exclude the application of the data protection principles set out in Article 5 of the GDPR.

Regarding the publication of the lists of admitted and excluded candidates in a selection process or competitive procedure, the legal report of this Agency 0002/2022 states the following:

(...) Article 55 of the EBEP establishes as one of the guiding principles that must inform access to public employment, in addition to the constitutional principles of equality, merit, and capacity, the principle of transparency.

And in terms of the provision of job positions, Article 78 also enshrines the principle of publicity in the following terms:

"1. Public Administrations shall provide job positions through procedures based on the principles of equality, merit, capacity, and publicity."

For its part, Royal Decree 364/1995 of March 10, as previously mentioned, establishes in its Article 5 the application of the principle of publicity; and it applies this throughout its articles, for example, in Article 20 under the heading "List of admitted and excluded," the following:

1. Upon expiration of the application submission period, the convening authority shall issue a resolution, within a maximum period of one month, declaring the list of admitted and excluded

candidates approved. In this resolution, which must be published in the
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In the "Official State Gazette," the locations where the complete certified lists of admitted and excluded candidates are publicly displayed will be indicated, specifying a period of ten working days for rectification and determining the place and date of the commencement of the exercises and, where applicable, the order of action of the candidates. The aforementioned lists must be made available, in any case, at the General Directorate of Public Administration, at the Administrative Information Center of the Ministry for Public Administrations, and at the Government Delegations and Civil Governments.

2. When the selective procedure allows it, the public display of the lists of admitted candidates will not be mandatory, and this must be specified in the corresponding call. In these cases, the resolution, which must be published in the "Official State Gazette," must include the place and date of the commencement of the exercises, as well as the list of excluded candidates indicating the reasons and the period for rectifying defects.

3. The publication of the Resolution in the "Official State Gazette" will determine the deadlines for possible challenges or appeals.

And in Article 22 under the heading "List of Approved Candidates" it states:

1. Once the qualification of the candidates is completed, the Courts or the Permanent Selection Commissions will make public the list of approved candidates in order of score at the locations where the last test was held, applying, where applicable, the provisions of Article 14.2 of this Regulation. This list will be submitted to the competent authority, which will publish it in the "Official State Gazette." Regarding professional promotion procedures, the principle of publicity is also enshrined, both for the call and for the resolution, in Article 38, as well as specified in Articles 42 and 52 of the same Regulation.

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LAPACP) establishes in its Article 45 the following:

1. Administrative acts will be subject to publication when established by the regulations governing each procedure or when advised by reasons of public interest assessed by the competent body.

In any case, administrative acts will be subject to publication, producing the effects of notification, in the following cases:

(...)

b) When they involve acts that are part of a selective procedure or competitive bidding of any kind. In this case, the call for the procedure must indicate the means by which the successive publications will be made, and those carried out in different places will be invalid.

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3. The publication of the acts shall be carried out in the official journal that corresponds, depending on which Administration the act to be notified originates from. In accordance with the transcribed provisions, and with the principle of transparency, there is an obligation to publish the resolution that declares the list of admitted and excluded candidates and the location where they are displayed; and when the procedure allows, the list of admitted candidates may not be published. The list of approved candidates from the selection process must also be published, generally in the BOE (Official State Bulletin) and at the offices of certain bodies related to the selection process or in the corresponding official journal. Furthermore, there is an express obligation to publish when it concerns a competitive selection procedure. (Article 45.1 b) LPACAP). That is to say, the legitimacy regarding the specific data processing consisting of the publication of the lists of participants, and where applicable, those

approved, by the disability quota in a competitive selection procedure would be found in Article 6.1 c) RGPD (General Data Protection Regulation).

However, it must be taken into account that the principle of proactive responsibility imposes on the data controllers and processors the duty to consider data protection from the design stage and by default, which entails the obligation to analyze the risk to the rights and freedoms of the participants that the application of the principle of transparency entails. In this regard, the aforementioned report 0002/2022 analyzes the criteria of this Agency regarding the combination of the principles of publicity and transparency in access to public service and the right to data protection.

“Resolution R/2593/2017 dated 29/09/2017 issued in the procedure for declaring Infraction AP 2_2017, in which the open publication via the internet, in a selection process, of the lists of admitted and excluded candidates and the lists with the provisional qualifications, and the possibility of downloading the corresponding PDF document, is denounced, where the following is indicated:

Regarding the subject matter of the complaint, once the call for applications has been published and the participation requests have been received, the competitive selection process would begin, which, as the term suggests, must be applied to and for all members of the group aspiring to pass the announced tests, competing against each other in merits and capacity. Once the call and the bases have been published, the subsequent procedures will affect a specific and qualified circle. The exposure of data within that circle is adequate, proportionate, and serves its purposes. These purposes are for those affected by the procedure, for example, to challenge acts they consider arbitrary or that harm their interests, as well as to compute deadlines for corrections and/or claims. To assert that transparency and publicity should prevail simply because access to the data of the admitted/excluded candidates or those provisionally qualified is generally available, and specifically in this case, lacks justification and greatly exceeds the purpose of the data processing of the affected individuals. Consequently, the rest of the public, those who do not undergo such tests, lack a legitimate basis to access the data of surnames and names along with the NIF (Tax Identification Number) of each candidate or their qualifications. This is not proportionate to the purpose of the process, and does not affect transparency, as it does not serve the intended goals of the procedure.

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third parties who are not going to be examined do not participate. Such access by any person to the data is invasive and contrary to the principle of data minimization and quality in their processing (Article 4.1 of the LOPD). Thus, third parties unrelated to the procedure should not have access from the outset to documents or data of the processing in which they do not hold any defined legal position. The provisional list of admitted and provisionally excluded candidates is an act related to the internal processing of the selection process. The right of a non-participant in the procedure may, in its case, be promoted on a case-by-case basis, as a right of access with specific access rules related to the Transparency Law.

(...)

It would be less intrusive and more in line with the provisions of data protection regulations if its publication affected and could be viewed only by those who participate, not by the general public.

Resolution R/3081/2017 of 24/11/2017 issued in the procedure for the declaration of Infraction AP 12_2017 in which the open publication on the website of the Junta de Comunidades de Castilla-La Mancha of the data of two minors is reported, including the scoring for the granting of school places, which included disability data.

The manner of proceeding of the accused has not been provided for the purpose of the process, as access by any person to the data of the applicants is invasive, since they do not participate in it, and the content of the scoring is also invasive. LOPD. It is therefore advised that access to the provisional and definitive lists be provided only to the applicants, either with keys and passwords assigned during the telematic submission or in another similar manner.

Resolution R/2726/2017 dated 17/10/2017 issued in the procedure for the declaration of Infraction AP 17_2017 in which the open publication via the internet in a selection process of the lists of admitted and excluded candidates for the Teaching Body of Secondary Education Teachers expressing the cause of exclusion is reported, where in Proven Fact 2, it is indicated that:

By resolution of 16/05/2016, the General Director of Teaching Staff and Academic Organization indicated that the provisional list of admitted and excluded candidates to be part of the lists of candidates for interim appointments in the Body of specialties called would be published on the bulletin board of the Ministry and on the educational portal of the Ministry of Education. For such access and viewing, neither a key nor a password is required, allowing any person, whether or not they participated in the process, to access and view the content.

And the Resolution continues in terms similar to those indicated above:

Therefore, the rest of the public, those who do not participate in such tests, lack a legitimate basis for accessing the data of surnames and names along with the NIF of each candidate or the causes of exclusion. Furthermore, in this case, there is a disproportion in explicitly stating in detail.

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the reason for the exclusion. The reason, in this case, is not related to the lack of accreditation of the disability but rather to the degree of incapacity recognized by the competent authority. To avoid having to explicitly state this reason, the respondent should provide in the call some keys related to generic causes for exclusion and subsequently provide the affected party with specific information so that they can contest it if deemed appropriate. The manner in which the respondent has proceeded is not proportional to the purpose of the process, as access by any person to the data of the applicants is invasive, given that they do not participate in it, and the content of the reason for exclusion is also invasive, violating Article 4.1 of the LOPD.

And finally, Resolution R/1600/2018 issued in the Infraction Declaration Procedure AP_45/2018, which will be referenced later, states that "in similar terms, it is deemed appropriate to access such lists through prior identification limited to the participants."

The aforementioned report concludes that "as can be seen, the criterion of this Agency has been that in accordance with the principle of proportionality provided in Article 4 of the now repealed LOPD, measures should be established to prevent third parties not involved in the procedures in question from accessing the personal information of the participants."

Therefore, the data controller must respect the requirements of transparency and publicity, taking into account the principles of data protection and applying appropriate measures based on the risks arising from publication.

VI

Conclusion

During the processing of this procedure, the entity being claimed has responded to this Agency and has demonstrated that it has addressed the request made by the claimant by sending the required response to their request.

Although from the beginning of this claim the respondent has justified the right to limitation, which does not aim to limit the processing of the participants' data, it has not done the same regarding the right to erasure, which it has addressed throughout the procedure.

After the admission of the claim for not having fully addressed the right to erasure, URLs of completed selection processes continued to appear, as claimed by the claimant. The respondent now, in the latest allegations presented, demonstrates that it has responded to the claimant to address the right to erasure.

Regarding the limitation of processing requested by the claimant, we consider that the respondent explains/justifies in detail how the official regulations apply in this regard, and therefore it would be denied with justification.

Thus, it is appropriate to uphold for formal reasons the claim that initiated this procedure only

regarding the right to erasure and to dismiss regarding the right to limitation, as we consider that the response from the respondent has addressed the request.

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In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by A.A.A., against the MINISTRY OF TRANSPORTS, MOBILITY AND URBAN AGENDA, regarding the right to erasure. However, a new certification by the respondent is not warranted, as the response was issued late, and no additional actions are required from the data controller.

SECOND: TO DISMISS the claim regarding the right to limitation.

THIRD: TO NOTIFY this resolution to A.A.A. and to the MINISTRY OF TRANSPORTS, MOBILITY AND URBAN AGENDA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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